

TESGI Decision Memo - CASE_0004

TESGI Advisory Decision Memo

****Client:**** Marcus & Julia Webb

****Date:**** May 10, 2024

****Property:**** Lot 42 Murrundi Creek Road, Yarran NSW 2850

****Prepared by:**** TESGI Advisory

****Service Type:**** Non-Representational Decision Analysis

1. Client Objective (As Understood)

You are considering purchasing 85 acres of rural land at Murrundi Creek Road, Yarran for \$480,000. Your stated objectives are:

1. Build a weekend retreat / holiday home
2. Potential future subdivision (2-3 lots)
3. Passive income from grazing lease
4. Long-term family asset (generational wealth)

Your risk tolerance is moderate, with emphasis on a clear pathway to development.

2. Information Snapshot

Known Facts

- Property is 85 acres, zoned RU1 Primary Production
- Freehold title, no caveats
- Dwelling is permitted under zoning (subject to approvals)
- AHIMS search identifies ****3 registered Aboriginal heritage sites**** on the property
- Site types include: scarred tree, artifact scatter, ****potential burial site****
- Active ****native title claim**** (Yarran Peoples) covers this area
- No Indigenous Land Use Agreement exists

Key Constraints

- Heritage sites protected under NSW National Parks and Wildlife Act 1974
- Disturbing Aboriginal objects: penalties up to \$1.1 million and/or imprisonment
- Any ground disturbance requires Aboriginal Heritage Impact Permit (AHIP)
- AHIP process: 12-24 months, outcome uncertain
- Native title determination: typically 5-10 years

3. TRUE Assessment Summary

Heritage constraints are definitively established through AHIMS and NNTT searches. Three registered sites and

****TRUE Status: PASS (constraints are known and bounded)****

4. NORTH Assessment Summary

The regulatory pathway to development is 5-12+ years with uncertain outcome. Heritage protection is strengthening

****NORTH Status: FAIL ? Decision does not make sense over time****

5. ALIGNED Assessment Summary

Client objectives (dwelling, subdivision, development-based wealth) are fundamentally misaligned with property

****ALIGNED Status: FAIL ? Objectives misaligned with constraints****

6. Decision State

- ☐ Proceed
- ☐ Pause
- ☒ Avoid / Walk Away

7. Rationale Summary

This property is not suitable for your stated objectives. The key reasons are:

1. ****Heritage sites prevent practical development.**** Three registered Aboriginal heritage sites, including a potential
2. ****Native title claim adds further uncertainty.**** The active native title claim will take 5-10 years to determine. D
3. ****Your timeline is incompatible with reality.**** A 90-day settlement assumes you can proceed with development
4. ****Your objectives require development that may never be approved.**** Building a dwelling and subdividing are